CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
May 12, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:02 p.m. in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, City Attorney Joseph L. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda items 16-2, 16-3, 16-4, 16-5, 16-6 and Vice Mayor Taylor pulled agenda items 16-7 off of the Consent Agenda (these items would be discussed separately under agenda item 12 – New Items).

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – 04/28/2010

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to approve the minutes of the Regular Commission Meeting of April 28, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison for the office of Miami-Dade County Commissioner Barbara Jordan, District 1, came forward and provided a brief update on the two buses being donated to the city for the seniors. The resolution is scheduled to be presented to the Board of County Commissioners in the near future.

Commissioner Johnson asked for the possibility of receiving a time certain for the team to come into the city for procurement, personnel and Human Resources.

Mr. Gardner said he would look into that issue and get back to the Commission.

Mayor Kelley informed Mr. Gardner that there were some discussions in terms of water & sewer public works related funding. Since Mr. Gardner had no knowledge of the funding Mayor Kelley said he would follow up on the issue.

With regards to the demolition date for properties in the Magnolia North area, Mayor Kelley said that the City Manager's Office had to submit something which they've done; therefore, it is back in the county's hands and he wants to make sure the process is in motion as soon as the last hurdle is cleared.

10. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

Battalion Chief Danny Cardeso of Miami-Dade Fire Rescue came forward and welcomed any questions or concerns from the Commission.

Mayor Kelley encouraged Miami-Dade Fire Rescue to keep up the good work.

11. PUBLIC PRESENTATION:

1. Alvin Burke
re: welfare of the city

Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida came forward and voiced his concerns relating to the resolution authorizing payment of $15,000.00 for plants in the Community Gardens. He questioned the numbers of bids received for that particular project due to the high amount. He suggested that the city take a good look at this resolution and get another company to come in and provide an estimate. Additionally, he said that it was ironic that during the same time the community garden was completed, another landscape job with similar plants was also completed.

Relating to the resolution for non-essential spending, he said he was wondering how long the city was to remain in the Town Center building because the city should start looking at getting out of Town Center and get funding to build a City Hall.

Mayor Kelley stated to Mr. Burke that the city is looking at either purchasing the Town Center building or looking for property and how they would pay for it; however, that will take money.

2. Steven Barrett
re: welfare of the city

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and stated that after attending the last Planning Council Meeting he has a concern relating to the number of schools coming into Opa-locka. The city must get a count of the current number of schools currently in the city. In addition to that, he suggested that the city check the churches as well because when churches come in as a church they end up bringing in a school as well. He stated that he would hate for the city to lose any of its public schools. He expressed his concerns relating to the lack of bus shelters on the west side of Opa-locka near the downtown area.

He continued by saying that he would like the Commission to amend the resolution prohibiting smoking in city vehicles to address the dark tinted windows as well to be able to see who's driving the vehicles.

With regards to the concern about the bus shelters, Commissioner Johnson stated that the City Manager was asked on several occasions to bring back a report. Since the issue with the bus shelters had been going on for years, she directed the City Manager to include this item in the packet provided to the commission prior to the next commission meeting for clarity and answers.

11a. CITIZENS' FORUM:

1. Pamela Screen of 3130 NW 131st Street, Opa-locka, Florida, appeared before the City Commission and spoke about the lack of drainage at the apartment complex and the flooding during rainy days.

Mayor Kelley stated that this was one of the roads mentioned on several different occasions in which the city was suppose to be coming up with a plan because of the lack of drainage in that area. He assumed that the City Manager was still working on the plan and suggested that he keep an eye on that road in the interim because of the challenge when it rains. He directed the City Manager to provide the Commission preferably by the next commission meeting with a short term and long term plan to address those concerns.

Vice Mayor Taylor stated that in her action item with regards to NW 131st Street, the City Manager's response was that the Public Works Department did pump that road. She said that this street had been a concern of hers for some time.

She further asked, was the pumping of the water successful.

Manager Patterson said it was successful for the moment; however, when it rains the water is right back.

2. Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida, came forward and stated his concerns relating to the resolution for services pertaining to the community garden. The Community Garden was beautiful at first but it is now growing weeds and for $15,000.00 the soil and mulch should've been treated. He urged the Commission to take a look at the quality of work before paying the $15,000.00 because it shouldn't just be $15,000.00 just for the plants.

12. ACTION ITEMS (items from consent agenda pull list):

16-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE EMPLOYEE PAY SCHEDULE PLAN FOR FY 2009-2010, IN SUBSTANTIALLY THE FORM ATTACHED HERETO; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked for clarification as to when the employee pay schedule plan went before the Personnel Board.

John Riley, Chairman of the City of Opa-locka Personnel Board came forward and stated that the employee pay plan went before the board in March; but it has not been back before the board since the workshop.

Commissioner Johnson said she was under the assumption that upon conclusion of the workshop the employee pay schedule plan would have went back to the Personnel Board. She made reference to some of the salaries in the Employee Pay Plan Schedule and said that they are already near the maximum salary. It is amazing that some of the positions have already exceeded the numbers in the schedule. She asked for clarification as to how the City Manager and staff came up with the numbers.

While looking at the pay plan that reflects a maximum and minimum, Manager Patterson suggested that the Commission keep in mind the longevity of employees in addition to other pay being received which is not included in the maximum and minimum. This schedule reflects the maximum and minimum and some employees are in the middle of these numbers.

Although some of the numbers seemed to be skewed, Commissioner Johnson said that over the years some employees received almost triple bonuses; therefore she is concerned as to how the city arrived to those numbers reflected in the schedule. Based on the documentation she'd received, some individuals made over $25,000.00 and she would like to know how that happened. She expressed her concern as to the transfer of an individual from one department to another without a change in salary and creating a position which according to the charter had not been authorized by this commission.

Manager Patterson stated that this predates his tenure with the city.

Commissioner Johnson stated that the day to day operations is the responsibility of the current City Manager and not anyone else. She said she was under the impression that whatever staff brings to him and because of the institutional knowledge, she asked the City Manager not to be brought into this cleverness of staff.

Because she had not received an answer, she suggested that the City Manager go back and revisit the schedule because it is not reflecting a true picture as it relates to the step increases, bonuses and evaluations. There are a number of top level employees who'd receive raises with no evaluation.

She further suggested that the City Manager review the schedule and receive some advisement or input because it is unfair to the employees.

Manager Patterson welcomed to review the documentation in Commissioner Johnson's possession.

Commissioner Johnson said she would be glad to provide the City Manager with the documentation. She suggested the City Manager defer the above resolution until he is able to gather all information.

Manager Patterson agreed.

Mayor Kelley explained that he would not support the resolution if the City Manager doesn't defer it for the simple fact that all of the pay plan additions, some of which were

added, but what he didn't see in the supporting documentation was the reason for adding those positions and why those positions had not been there. Although some of this predates the City Manager, he said that the City Manager is in the seat and as far as he's concerned it's in Mr. Patterson's lap. The schedule should have gone back before the Personnel Board and it still could have gone before the Commission even if the board didn't agree.

He requested to be provided with the reasoning for adding those positions to the plan as oppose to just saying the positions are being added because they weren't in there. In addition to the justification for adding the pay plan additions into the document because he doesn't see as to why. Even in several departments, there are positions that are re-titled and he would like to see that explanation.

Vice Mayor Taylor asked John Riley of the Personnel Board what was wrong with the plan in his opinion.

Mr. Riley said he had not seen the plan.

Vice Mayor Taylor asked Commissioner Johnson what was wrong with the plan.

Commissioner Johnson said she had already put her concerns on record. She reiterated the need for advisement from the Personnel Board and the fact that some employees have already exceeded the maximum salary for their position. She said that the Human Resources Director, City Manager, City Attorney and the Personnel Board must go back and review the schedule. Additional positions were also added to the schedule which according to the charter doesn't exist.

Vice Mayor Taylor asked Manager Patterson whether he could defend the pay plan.

Although Manager Patterson agreed with some of the things stated, he said the city is trying to establish the base and then go from there. Some of these positions in the pay plan are no longer in the city at all and some positions were brought in later and have not been approved in the pay plan which is normally done in the budget. However, the city must start somewhere and draw a base line then go from there in an effort to correct the situation.

Vice Mayor Taylor suggested that the City Manager withdraw the resolution, start over to include those items that were excluded and exclude those items that are included but should be excluded and then allow for it to go through the process before coming back to the Commission.

Because the pay plan went before the Personnel Board in March, Mayor Kelley asked, why didn't the City Manager send it back to the board after making the revisions and modifications? Since the Human Resources Director was not present at the meeting, he said he would look forward to an answer in the future.

Commissioner Holmes said the bottom line is that the Commission creates jobs and no department heads has that authority.

In terms of the minimum and maximum salary scale in the document, Commissioner Tydus asked, does the time between the minimum and the maximum represent increments of ten years, twelve years or increments at all?

Manager Patterson stated that this is a ten year step pay plan and when starting at the beginning, it would take you ten years to finish. However, when hiring someone with experience, depending upon their salary would determine where the city would start them at which may be in the middle of the range.

The seconded and motion were withdrawn from the above resolution. The above resolution was deferred.

16-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO AMEND RESOLUTION 09-7471 REGARDING ANNUAL LEAVE FOR CITY EMPLOYEES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson stated that the resolution was a great idea; however, she would hope that this would allow employees to be grandfathered their time especially those employees with a tenure of more than 5 years.

Manager Patterson stated that the information is not in the document for the simple reason that there are employees who have less than five years.

Commissioner Johnson said that the city has a rule on the books since 2001 which is not adhered to that some of the top staff has taken advantage of; therefore, if it's good for one then it's good for all. With this in mind, she said she would like to see those employees with more than 5 years of service with the city are incorporated in this legislation.

Manager Patterson explained that those employees with less than five years would start off under this program to use it or lose it. This legislation provides for the employees who have more than 5 years to utilize their grandfathered time within the time frame established in the resolution to get that grandfathered time down to where the city is not sitting on an unfunded liability.

Mayor Kelley expressed his contentment with this legislation because this was one of the issues that the audit report had indicated over the last couple of years that the city needed to address. He said he would hope the city makes provisions where it would not impact operations. Over the course of time employees have not used their time and when they leave employment with the city, it's an enormous time. The City Manager used the

correct terminology in that this is an unfunded mandate sitting there which the city must lower.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

16-4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO BILL MULTI-FAMILY PROPERTIES RECENTLY CHANGED TO RESIDENTIAL FROM COMMERCIAL STATUS MONTHLY UNTIL OCTOBER 2010; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked for an explanation on the above resolution.

Manager Patterson explained that the Commission passed an ordinance a few meetings ago in which the city found that their definition of commercial was different from what they were actually doing. This resolution allows for the city to go to the tax roll with these commercial properties that were once picked up by the private but weren't billed. The city has now reclassified the ordinance to make commercial the same as what the city is actually doing in reality.

Commissioner Johnson asked, what is the city doing to recover those monies from the properties that weren't billed?

Manager Patterson recommended that the city not do anything due to the fact that most of the properties are rental and this would be billed to the property owner not tenants. These were properties that the city's ordinance excluded in the way they were billing and now they're bringing them in line with what they're actually doing.

Commissioner Johnson asked the City Attorney if there was something the city could do to recover those monies.

Because there are pros and cons with this issue, Attorney Geller requested that Commissioner Johnson allow him to share his thoughts in private meetings with the members of the commission individually.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

16-5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO MAKE FULL PAYMENT OF FIFTEEN THOUSAND FIVE HUNDRED NINE DOLLARS ($15,509.00) FROM ACCOUNT 72-572630, TO MILAGROS FARM NURSERY FOR GARDEN LANDSCAPING/MAINTENANCE SERVICES; FOR REMOVAL AND TRANSPLANTATION OF TREES FROM THE COMMUNITY GARDEN; FOR INSTALLATION OF PLANTS, SOD AND MULCH TO THE COMMUNITY GARDEN; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDNG FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson expressed her concerns relating being under the impression that there was a large donation of plants to the city and now they are being asked to pay $15,000.00. In the previous package presented, the total came up to approximately $4,000.00 which is a huge difference from the current amount. She made reference to an invoice for $10,000.00 for a fence that was included in the documentation she had of the previous package submitted; however, she doesn't see a fence.

In looking at the earlier plans, Manager Patterson said there was a fence recommended; however, since he's been on board the city has worked on the garden without a fence.

Commissioner Johnson advised that there was a resolution passed for $10,000.00 for a fence. This project was started since 2006 and the documentation provided included a fence and the breakdown of the plants.

Manager Patterson advised that since he's been working on this project there was no fence involved and he doesn't know who got rid of the fence.

Commissioner Johnson asked, did the city pay for a fence?

Manager Patterson replied, no.

To date, Commissioner Johnson asked, what has the city paid for as it relates to this project?

Manager Patterson stated that the city has spent a total of $37,335.15 to date and the original budget amount for this project is $42,000.00. The only items which have not been paid for are the two poles to light up the garden.

Commissioner Holmes explained that he had many concerns relating to this project from day one. Initially he supported the community garden but over the years he had asked how much money the city is spending on that garden. However, he hasn't seen an actual figure until hearing the City Manager just state that the city has spent $37,000.00. He asked if the $37,000.00 included what was paid to service the garden?

Manager Patterson said the $37,000.00 included materials as well as labor.

Commissioner Holmes asked if that amount include the labor from all city employees who have worked on the project?

Manager Patterson said it only included contracted labor and not employees.

Of concern to Commissioner Holmes was the fact that the city employees have put a great amount of time working on the garden and these individuals are being paid by the city on a hourly or salary basis; therefore, he hasn't really received an actual figure on what the city has spent. Now, the city has another resolution for $15,000.00 to pay for plants. He said it was brought to his attention that plants were placed at another location as well and if that is the case he cannot support resolution.

Commissioner Tydus stated that this project had been a bone of contention with this Commission since 2006; however, there hasn't been one complaint nothing but accolades from within and from with out about the Butterfly Garden. This resolution before the Commission is for the plants and that is the last item in completing the garden. The work done by Public Works was arranged by the former administration in an effort to meet this Commission's complaints about the cost of the garden. She said this is a budgeted item at $43,000.00 and the administration could provide the account as to how Milagros Farm Nursery was selected.

Manager Patterson stated that the selection of the contractor providing the services was selected prior to him coming to the City of Opa-locka.

Commissioner Tydus asked if there was staff present which was involved in the selection process.

Mayor Kelley stated to the City Manager that he didn't want to get into every time there's an issue staff runs for cover. This item was prepared by staff and staff needs to come forward and answer the questions.

Gerald Lee of the Community Development Department came forward and stated that he wasn't a part of the original process; however, he does know that the city had been working with Milagros for other projects and when asked to give a bid for what was requested at this particular site he was told that Milagros was lower than the others

received. He said he is aware of the work Milagros has completed in other areas and he does provide good prices because he has that ability based on the stock.

Mayor Kelley stated that the city has a procurement process and what Mr. Lee is saying is that Milagros got called in but he doesn't know who called the vendor.

Vice Mayor Taylor asked, were other vendors called and is there a list of the others?

Mr. Lee said that others were called but he doesn't see the list of other vendors for the plants but he was told the other plant vendors came in with higher prices for the same products.

Mayor Kelley said all this is verbal but nothing in writing.

Mr. Lee responded that for him, yes because of the recent change.

Daniel Abia, Director of the City of Opa-locka Public Works Department came forward and stated that there were three bids submitted to Purchasing and Milagros was the lowest bidder. He added that there was a complaint from Milagros that he was the lowest bidder but was not selected for another job the former Community Development Director Mr. Spanner had complained to him about. He then asked Mr. Spanner to find out who was selected as the vendor to provide the plants for the garden and he found out it was Milagros. At that point, he didn't see a need to go inside it any further because the complainer is the vendor being selected. He stated that Mr. Spanner was the lead for the garden until Public Works had to recently step in and take over.

According to the information provided by Mr. Abia, Commissioner Tydus stated that the city received three quotes and Milagros was the lowest quote and has done business for the city in the past. Based on the documentation, she said that Milagros has also donated over $2,200.00 worth of services and trees. Once again, this project is a budgeted item for $43,000.00 and the city has not gone over budget. This company has provided a service and they need to be paid for that service or the city will be liable.

After listening to staff refer to Mr. Spanner, Commissioner Holmes suggested that they not use Mr. Spanner as an scapegoat because he is no longer with the city. He suggested that the City Manager continue this item to allow staff to get the information needed to answer the concerns of this Commission. Upon hearing that there are other quotes, he hasn't heard any other quote but the one mentioned. If there are more quotes, the Commission should have that information.

Commissioner Johnson stated that in 2006 there was a resolution which she supported for the community garden and it passed. The minutes from May 38, 2008 reflect that former Manager Beverly asked that agenda item 15-7 be deferred until the next meeting which dealt with the community garden but it never came back before the City Commission. The minutes dated January 13, 2010 reflect that former Manager Finnie reported the total project cost for the community garden at $42,000.00 and he would recommend via memorandum to the new City Manager that this project continue. On the previous resolution which the minutes reflects she asked what item number the funds would come

from and at that time, it was projected for $28,000.00 and to her this is a great increase from $28,000.00 to $42,000.00 plus now $15,000.00. She suggested that the City Manager do some research.

Vice Mayor Taylor asked, are these plants in the garden?

Mr. Lee replied, yes.

Vice Mayor Taylor said that the resolution is simple and is saying pay the vendor for the plants put in the garden.

Manager Patterson added that the amount in this resolution is inclusive in the $37,000.00.

Vice Mayor Taylor suggested that the Commission pay the vendor for the work that they've done and the product put in that garden.

Mayor Kelley stated that this resolution is for installation and the price of plants. Because he didn't have the three quotes for this project, he asked, is that the going rate for this service and products? Additionally, Mr. Abia stated that Milagros was being selected because they initially they felt like they were out bided or should've got some other work and then when Mr. Abia found out it was this company, it kind of balanced out.

Mr. Abia said that the same company complaining about not getting any work was the same company being selected.

Mayor Kelley added so when Mr. Abia saw that it felt like okay they're getting some work now. He said he had a challenge with that concept and would be addressing at a later time.

He continued by asking if the pricing is the going rate for the services and products provided by this vendor?

Mr. Lee replied, yes.

Mayor Kelley asked if staff had the other quotes that would bear out that the vendor selected was the most cost effective?

Mr. Abia advised that he was just told Mrs. Rose McKay in the city's Purchasing Department has three quotes for this project and Milagros was the lowest quote.

Commissioner Holmes asked, where are the three quotes because they should be included in the agenda as a part of this resolution?

Mayor Kelley said that this goes back to the procurement issue and how the city selects companies. Because he didn't like the idea as to how this is done but he is also concerned that this company has done the work and the fact that the city has not done due diligence to make sure it's not on them. He said if the city doesn't pay this company and they sue the city then the city would be liable for even more money.

Attorney Geller advised that any lawsuit served allows for 20 days to respond to the lawsuit. It is possible they would refuse to accept the funds that they were owed because they had to go to court but he's not sure if the contract provides for attorney fees anyway. If the Commission is not ready, most people will accept that there is something being done; however, on the other hand he does understand this could be a small business and they may be dependent on it and the city doesn't want to place anyone in an unfortunate position just because they can. The city probably has the right and ability to take another look at it and be sure to bring it back but that doesn't mean that is the best course of action recommended to the Commission. He said this is the pleasure of the Commission and he can't tell them this is going to cost them money but that doesn't make it right.

Because the resolution was for payment on an invoice for services and products provided, Vice Mayor Taylor stated that it is too late to go back to review and see all of the bids because the work has been done and the plants are in the ground. The city cannot negotiate this because they have already accepted this and it is right to pay him. She suggested that the next time around staff do it more transparently and follow every single step that has to be done.

Commissioner Holmes stated that as the Vice Mayor stated the plants are in the ground but at what location because it was brought to his attention that they were at more than one location.

Manager Patterson responded that that was not true. There were two oak trees moved out of that location and placed at another park.

Commissioner Holmes said he would not support the resolution because he has yet to receive a true accurate figure from the City Manager's as to how much this project would cost the city.

Commissioner Johnson also stated that she would not support the resolution because the Commission has told staff over and over about bringing projects after the fact and it is disrespectful for them to continue to do this. The Commission will find similar situations already taken place at Segal Park. She stated that there are problems in procurement and although she agrees with the Vice Mayor that the vendor has to be paid but she has to be clear on what she is voting on.

Commissioner Holmes suggested that the above resolution is deferred.

After hearing that there are other quotes for this project and the price is comparable, Mayor Kelley agreed that the city had to pay for the services but he would've had a better comfort level if he would have seen the quotes to know that this pricing is correct. Also, he heard from Public Works that Milagros didn't get a job and so the city leaned that way for this project and when staff found out it was that specific vendor then that made it better but that didn't give him a comfort level.

He also requested that the resolution is deferred until the Commission can get a copy of all quotes for this project and if they're in line then he would support it. The City

Manager said that this amount makes it $37,000.00 and then he heard that it didn't but then there's a question as to how much the original budget was from the beginning.

Vice Mayor Taylor asked, what can the Commission do if the quotes are not in line because the work has already been done? The work has been done and the Commission is stalling but it is not fair to punish the vendor because city staff is out of line. The vendor did the work, this is an honest invoice and they should get paid.

Commissioner Tydus reiterated what the Vice Mayor has stated as well. The city cannot penalize business people and vendors for what appears to be our lack of due diligence. If whatever the Commission is saying is true, the vendor the vendor still have to be paid because the work has been done. She asked, what would the Commission do otherwise if the administration comes back and there aren't three quotes or whatever else?

Commissioner Johnson agreed with Commissioner Tydus however she would be taking corrective action on the City Manager and she would get with the City Attorney.

Vice Mayor Taylor stated to the Commission that if this resolution looked like it was going to fail because she has a business and when she gives an invoice she wants to be paid, she would rather have the City Manager defer the resolution and bring it back.

Commissioner Tydus stated that this issue is not a reflection on her but a reflection on the city and people are not going to want to do business with the city.

Although she was satisfied with the resolution, Vice Mayor Taylor said she would withdraw her seconded to allow the City Manager to provide the Commission with the information requested and bring back the resolution at the next meeting.

Mayor Kelley said that he heard mention of this being a small company who is in need of their money.

Manager Patterson said he received a telephone call from the company that they were told by Mr. Spanner that upon completion of the job they would get their money. He then explained to the company that he would have to bring to the Commission because the amount was higher than his spending fund; therefore, he asked them to wait until it comes to the Commission.

Mayor Kelley said that being the City Manager and telling the company that then he would expect them to get paid because the City Manager told them to hold off until the meeting.

Based on what the City Manager just stated, Mayor Kelley said that the company held off because the City Manager told them the amount was beyond his amount. Although he had other challenges with this item, he said he would support the resolution because of what the City Manager just stated.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

16-6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY TO CO-SPONSOR THE NATIONAL LEAGUE OF CITIES PRESCRIPTION DISCOUNT CARD PROGRAM; AUTHORIZING THE CITY MANAGER TO TAKE ANY AND ALL STEPS NECESSARY IN ORDER FOR THE CITY TO BECOME A SPONSOR OF THE PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DIRECT THE MANAGER TO FREEZE ALL NON-ESSENTIAL SPENDING AS OF MID APRIL IN ANTICIPATION OF LOWER REVENUE COLLECTIONS IN THE COMING FISCAL YEAR; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by J.K. and D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor asked, who makes the decision on the non essential? Additionally, there's a sentence that talks about all city cell phones shall be revoked except for other police employees designated by the chief and IT. She asked, is IT going to be designating who gets the phones?

Attorney Geller replied, no, the resolution could be worded better. He suggested that the wording be changed to reflect as follows: City Manager, Assistant City Managers, Department Heads, IT Department, the Police Chief, Assistant Police Chief and other police employees designated by the Chief. The intent was for the IT Department to be on

call due to another department being shut down, therefore, they would need to keep their cell phones to respond immediately to any other department. Grammatically it would be better to put the IT Department in front of all the police stuff.

Vice Mayor Taylor expressed her concerns relating to the cell phones in terms of the other police employees designated by the Chief.

Attorney Geller explained that if the Police Chief made a determination some non sworn person required a cell phone in order to enable the department to do their duties; the intent was that if there is someone other than a senior police administrative official that the chief believes it is necessary it's principally intended to apply to police officers but the flexibility was to allow the Chief to designate a non sworn officer if the Chief felt that was essential to the mission of the department.

As it relates to the determination of non essential, Commissioner Johnson stated that the City Manager would recommend because the city has to look at the future and many homes will be coming off the tax roll. She said that essential should be at a desperate need. Excluding the police department, the City Manager has to come back with a resolution to the Commission and that was the original intent. Although she didn't know what the co-sponsor's intent was but she didn't want to give the leverage to staff to determine. The City Manager will recommend anything out of non essential to the Commission.

Vice Mayor Taylor asked, until when because the resolution doesn't provide for a sunset date and to be reviewed September 30, 2010 at the end of the fiscal year?

Attorney Geller explained that this document relates to the city's existing budget and that actually goes to the other question as well. If the Commission is directed and authorized something to be spent then the City Manager is obligated to do so absent the change from the Commission. However, where the Commission has simply authorized money in the budget and has not directed it to be spent then this is no difference then other circumstances.

Vice Mayor Taylor said that if the resolution starts April then there must be an end month with a review.

Mayor Kelley explained that in speaking to Attorney Geller he had indicated for this resolution to go through the end of the fiscal year because it is tied to the budget and by then the Commission would know the new tax roll. If the Commission decided they wanted to continue the freeze then it would just require a new resolution.

He continued by saying that he had no problem adding September 30 because that's the intent.

Attorney Geller advised that Section 2 could read as follows: to freeze all non-essential spending as of mid April for the remainder of the current fiscal year.

Commissioner Johnson suggested that the spending as of mid April be changed to reflect May 12, 2010.

Mayor Kelley stated that the intent as he initially said is that the city must be very focus on the fact of the anticipation of lower revenue projections and he is aware for the most part that those numbers come out June 1, 2010. In anticipation of that and realizing the tight fiscal restraints he wanted to be able to do the freeze and not put the burden on the City Manager so there would be clear direction that they need to tighten their belt in a lot of areas. In some areas, there are radios and other communication equipment that can be utilized.

Commissioner Johnson suggested that the City Manager look at the take home cars because she is seeing individuals not in Code Enforcement that are taking home cars. After attending a meeting, she learned that the county's deficit is 365 Million Dollars which would ultimately impact the city as they move forward.

Attorney Geller stated that the amendments to the above resolution are as follows:

Section 2: replace mid April with May 12, 2010; immediately thereafter add the words for the remainder of the current fiscal year. At the bottom of Section 2: the words IT Department are being moved directly after the words Department Heads and a period after designated by the Chief.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to amend the resolution to reflect the above changes as read into the record by the City Attorney.

There being no further discussion, the motion passed by a 4-1 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

There being no further discussion, the original motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	No
Commissioner Holmes	Yes
Mayor Kelley	Yes

13. NEW ITEMS:

14. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

15. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 09-18, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2009, AND ENDING SEPTEMBER 30, 2010; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 09-19, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2009, AND ENDING SEPTEMBER 30, 2010; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES IN REVENUE SOURCE AS FOLLOWS: CAPITAL PROJECTS (FUND 320) BUDGET, REDUCTION OF TWENTY-FIVE THOUSAND DOLLARS ($25,000.00); CRIME PREVENTION (FUND 172) BUDGET, INCREASE OF FOURTEEN THOUSAND FIVE HUNDRED DOLLARS ($14,500.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above ordinance.

After noticing that the franchise fees for Waste Management was being reduced, Commissioner Johnson asked, is there a revenue number for Choice Environmental?

Manager Patterson said that Choice Environmental revenue would not be increased; however, for those properties that weren't billed by the city's definition of commercial accounts that will now be going to Waste Management and not to Choice Environmental Services.

Commissioner Johnson said she noticed that occupational license revenue was reduced by $50,000.00. She asked, is Code Enforcement working to make sure the businesses are in compliance?

Manager Patterson explained that initially the city projected there would be an increase but after going back and reviewing the occupational license revenue it doesn't seem as though the amount would be as originally projected.

Commissioner Johnson asked, did the city have a savings of $20,000.00 by having the work completed in-house?

Faye Douglas of the City of Opa-locka Finance Department (Budget) came forward and stated that in the original general fund budget, the city budgeted $20,000.00 to be received from the county for administrative expenses for Segal Park. The city had a grant for $200,000.00 and because the work is being done in-house, the city believed they could get 10% ($20,000.00) for administrative costs but subsequently to that and in discussions with OCED, they preferred that the entire $200,000.00 be used towards construction expenses. This is reducing the $20,000.00 revenue in the general fund and placing that money in the capital projects fund toward the actual project.

Commissioner Johnson requested that the City Manager provide her with all the expenditures for the Segal Park project as well as all the procurement documents. In addition to that, she would like to know how the information was bided out. She requested to have this information by Friday, May 14, 2010.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

16. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO ADOPT A BAN TO PROHIBIT SMOKING IN CITY

OWNED VEHICLES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolution.

The motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson reported that the city has met with Joel Maxwell and Mr. Goldstein relating to the Cuyahoga property. After going through thorough investigation he found out that the property owner wants to sell the property and Mr. Goldstein is working for the property owner who would come in and develop it by getting grants from the Brownfield money from the federal government to build housing on that property. If Mr. Goldstein is not able to secure the grants then the city would pay the property owner for the property and the property would have to be in the city's name in order to receive the grant from Brownfield. If the city was to put the property under its name and the property owner failed to get the grant then the city would have the liability of cleaning up the property plus what has been paid to Mr. Goldstein's property.

He continued by providing an update on the improvements of the pump stations citywide

He advised that he sent correspondence to Miami-Dade County about relooking at their Master Plan in terms of the outlay for improving streets and drainage in the city because a part of the problem in the NW 131st Street area is the water running off of the county road onto the city's streets which is contributing to the city's problem.

With regards to the Hurricane Preparedness Plan, he advised that it would be ready on Friday, May 14, 2010 because there was a change that needed to be made in terms of the backup command post.

He further stated that the city is looking at the possibility of fencing the lakefront on Wilmington Street in order to direct the traffic back into the main entrance of Ingram Park which would be along the lines of what he and the Mayor spoke about with regards to looking at possible future funding for the city and looking at new sources of funding.

Going back to what the City Manager reported on the Cuyahoga property in terms of that not being a good venture for the city to engage because the liability would fall on the city, Mayor Kelley asked, has the city sent the property owner anything indicating that the city

would not be amenable to that but still expect owners to do something with the property as oppose to leaving it in its current condition. Although the city was hopeful he is very much concerned of what their plans are not just for the city to assume liability and fall through. If the property owners come back with a plan to seek the funding which does not tie the city to liability then obviously that would be something to look at but if that's not then it needs to be very clear that the intent is not just to have the property sitting as it is in its current form with no plan, progress or opportunity.

In mentioning the pump stations and because citizens aren't always aware, he suggested that the map and information is displayed on the 4th floor at Town Center.

Manager Patterson informed the Commission that he would work closely with the City Attorney on the Cuyahoga property.

In looking at the Cuyahoga property, Commissioner Johnson suggested that the City Manager look into it because she believes there's a court judgment ordering the property owners to clean up that property with their own funds and she would have though by now the city would have liens on that property.

Mayor Kelley informed Commissioner Johnson that there are liens on that property.

In speaking about liens, Commissioner Johnson said that there were a couple of citizens who made public records requests and it appears that the total is $1.9 Million Dollars of outstanding liens which could fix roads. She directed the City Manager and City Attorney to work together in bringing the outstanding liens down because that's a lot of money owed to the city which they need to collect.

She continued by saying that she received many complaints from residents of their water being turned off when commercial and businesses have these $100,000.00 water bills and somehow that's not equality or balance. She directed the City Manager to look into this matter.

She further advised that she'd received many complaints about the Human Resources Department and how staff is talking to people. She assumed that all those employees attended the Customer Service training. From the conversations, she thinks staff in that department is out of place and not the image the city wants to project with the employees talking to other vendors and customers.

Commissioner Johnson requested to be provided with a monthly law enforcement report. In addition to that, she noticed on NW 27th Avenue there are plenty vehicles running the red light during peak hours. The vehicles are cutting through Porter's and that's why the pole is bent.

She went on to say that she meet with citizens living near the canals on NW 22nd Avenue and by Nathan B. Young Elementary and somehow kids are getting a hold of BB guns and killing the ducks and cats. Because two of the citizens said something to the youth their water was left on at their property causing flooding at their homes as a result of the kids retaliating.

She further expressed her concerns relating to the lack of returned call to citizens.

Vice Mayor Taylor thanked the City Manager for the Habitat for Humanity which would include Opa-locka on the application.

She referred to her packet provided by the City Manager's Office and stated that although the City Manager provided the dump sites he didn't indicate what the plan was. Her suggestion was to plant tress to eliminate the hole. The city also pumped out the water behind the Garden Apartments but the City Manager also indicated that it was not their job and that it was incumbent upon the owner. The water has been sitting for a while and she cannot see Code Enforcement seeing that and nothing was done about it prior to her mentioning it. She directed the City Manager to contact the owner so that he can address the problem.

She further stated that she would like to see a plate at the Butterfly Garden with the Commission's name on it and the year that it was done.

Commissioner Tydus stated that there is a serious problem with speeding on the streets more specifically in the residential areas; those streets that enter into the residential areas from NW 27th Avenue. She said she is scheduled to meet with a funding source in two weeks that may be able to assist with this problem because what she's proposing are the traffic roundabouts that would not only help eradicate the problem, slow the traffic down and it will also enhance the city's beautification efforts. She directed the City Manager to provide a report as to how many traffic roundabouts the city would need, locations and the cost so that she can take with her to the meeting scheduled for the end of May.

Commissioner Holmes informed the City Manager that he'd received a complaint about the road condition of NW 26th Avenue between the canal and Superior Street. He directed the City Manager to have staff look at the road to see if there is anything that can be done to improve that road.

He continued by saying that on NW 139th Street from NW 26th Avenue to NW 23rd Avenue the trees need trimming because they are covering the street lights.

He further directed the City Manager to address the jet skis in the canal on Wilmington Street and to erect no trespassing signs and sings prohibiting jet skis in that area. In the meantime, he directed the City Attorney to come up with an ordinance addressing the jet skis in the city's lake and canals.

Commissioner Holmes suggested that the city adjust the timing on the lights at the park because they are coming on at 6:15 p.m. when the sun is still out.

After attending Moon over Magnolia, he said the City Clerk brought it to his attention that the security at the State Building was telling the people they could not park on the property. Because the city donated the property to the state, they should be able to park in the parking lot.

He further expressed the need for the city to purchase at least five police vehicles prior to the budget due to the condition of the existing police vehicles. He directed the City Manager to bring back a report at the next meeting as to how the city could fund at least five police vehicles. Of concern to Commissioner Holmes was also the fact that certain employees were put in positions temporarily to fill vacancies and were given an increase; however, once the employees went back to their regular positions the city didn't deduct the increase. The city is now trying to stop that increase and go back and collect from the time those employees went back to their original positions. Although he agreed with discontinuing the increase which was given temporarily, he doesn't agree with making the employees pay back the money from the time they went back to their original positions because the city failed to stop the increase.

Because he was still receiving many complaints relating to the high water bills, he directed the City Manager and City Attorney to come up with a plan to give the citizens some type of relief by increasing the water consumption without increasing the rates and causing the city hardship.

Mayor Kelley stated that he didn't hear the City Manager give an update on the MPO although the city made a presentation on the city's bus circulator. He directed the City Manager to provide the Commission in writing with the next step in the process after the presentation.

He continued by saying that he previously asked about citywide lighting and the city was suppose to be receiving something from FPL to upgrade the lighting throughout the entire city as well as the sidewalk master plan that was suppose to be already done and how the city will address those sidewalks that are deficient as well as the installation of new sidewalks.

He further stated that there's funding through the Commerce, Justice and Science Incorporation Federal Government which can access funding for police technology and equipment and he would hope the grant writer would pursue this funding.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and advised the Commission that the finance reports were included in the packet under tabs 4 and 5.

17. OFFICIAL BOARD REPORTS:

John Riley, Chairman of the Charter Review Board and the Personnel Board came forward and stated that previously there was a time when the Official Board Reports was before Citizens' Forum. He asked that the Commission consider doing that once again. As a committed dedicated citizen of Opa-locka and he doesn't mind working and putting in the time for his community. However, after doing the work and putting in time then making a report to the Commission and it is completely ignored is disrespectful and shameful. The Commission as leaders set example to follow and if they ignore the boards then the administration and everybody else would ignore them to.

He continued by saying there were some simple things from the Charter Review Board; however, nothing can be changed in the Charter unless the people votes on it. The recommendations from the Charter Review Board has been provided to the Commission on numerous occasions and the process is for the Charter Review Board to do the work, make recommendations to the Commission and they either reject it or not but they need to do something. However, to do nothing is just like the work done by the board is in vain and that's just not right.

As it relates to the Personnel Board, he said he previously told former City Manager Mr. Finnie that there are no accrual administrative regulations in the City of Opa-locka. Ordinance No. 07-03 approved the city's Personnel Rules in February 2007; Rule XXII states that it is intended that annual leave would be taken within the calendar year in which they are due and that's the law since 2004. The City Commission passed a resolution on annual leave but the resolution cannot amend the law because the law states if you don't take it in the year its accrued then you lose it.

He further stated that he doesn't find anywhere in the Charter or any case law that allows the administration to ignore the findings of the Personnel Board and that is the reason for his request for a board of inquiry.

Commissioner Holmes asked that Mr. Riley provide him with a copy of the items previously provided to the Commission so that he can pass it to the City Attorney to start working on it.

Mayor Kelley stated to the City Attorney that Mr. Riley has made several concerns known some going back to the inquiry. He directed the City Attorney to address those concerns mentioned in writing to the Commission before the next meeting.

18. CITY ATTORNEY'S REPORT:

Attorney Geller reported that the city is progressing on Sherbondy Park and the notice to proceed has been issued. The city has received a proposed change order and is doing due diligence on that to make sure the price given for architectural and engineering redesign services to bring it up to a silver certified green building which require changes is a good price. The contractor has offered to do it themselves within the existing budget.

He stated that he'd been back and forth trying to get the final union meetings scheduled and also the City Manager's budget process has moved forward. He hopes to wrap those up prior to the next meeting. In addition if the Commission does approve anything for the ballot, it's his intention to include the deferred compensation amendment on the ballot as well hoping to target the August election if possible.

He further reported that there is mediation pending on a couple of case and he is working with the other side to have those scheduled sooner than later. He said he made progress on a proposed school ordinance which would be brought to the Commission and includes Charter Schools with anticipation of first reading at the next regular meeting. He requested to meet with the Commission individually on the school ordinance. He is getting to the point where he believes to have a draft that would fit the city well because

there are a lot of holes in the land development code and that's an issue he'll come back to on another evening. The land development code is antiquated and not serving the city well and does not have the tools needed in so far as these schools whether they're private or charter schools. Currently those schools are not permitted at all except in conjunction with a church. The Commission doesn't want to declare open season on Opa-locka but have something to give them the teeth to reject projects and not be forced to approve everything.

Attorney Geller stated that the city currently doesn't have anything relating to a telecom ordinance but they must have something because there are telecom towers in the city. Without an ordinance, the city doesn't have a way to stop anybody else. In drafting the ordinance he requested that the Commission give their advice because he is looking at prohibiting new telecom towers.

He continued by reporting that he and the City Manager had a great meeting with Creative Sustainable Solutions LLC. This is a group that dedicated to doing things green and helping in the process with economic development. The City of Opa-locka is the only city that doesn't have to put up any money because of work that's already been done by the city and particularly by Commissioner Johnson.

As far as the written report Mayor Kelley just talked about, he said he would be happy to do it but he had a very good meeting with Mr. Riley which the City Clerk facilitated and he'd been in conversation with the City Manager. If the issue is not resolved he would certainly provide a written report but he believes the city is on the verge of getting a couple of personnel issues resolved where there would not need to be a board of inquiry or anything else.

Attorney Geller reported that the issue with the parking lot which Commissioner Holmes spoke about was something that the Mayor also contacted him about and the City Manager has been in touch downtown to see who at the state. The city is having a difficult time putting their hands on those original documents. Assuming that the documents are as people think they are, he is prepared to take whatever action the original documents entitled the city to take to force them to allow the citizens' use and access to that parking lot without being harassed or intimidated.

In reference to the purchase of police vehicles Commissioner Holmes talked about, he said that if there's any possibility the city can find a way to increase the forfeiture funds received from operations conducted with the county and other law enforcement agencies to purchase the vehicles as oppose to utilizing tax dollars.

Mayor Kelley stated that Mr. Riley mentioned the fact that when boards make recommendations that they're ignored and the reason he mentioned it was because he is aware that the City Attorney has reported on those same issues on several occasions. He said he wants to make it very clear, not only for that board, that the Commission does value their input and are not "ignoring" when they bring items and/or suggestions before them. This is the reason he requested a memorandum or if the City Attorney comes to a resolutions of the issues.

He directed the City Attorney to get with the City Clerk on dates to start up the workshop(s) to address outdated code and land use issues to include those recommendations from the Charter Review Board.

Commissioner Johnson requested that the City Attorney bring back a resolution to have the parks pet free. Also, she would like the ordinance banning any new telecom towers because there are not enough studies showing the possibility of health issues down the line. She requested to be the sponsor of the telecom tower ordinance.

She requested that the City Attorney bring back a resolution to address the tinted windows on city vehicles and for city employees to utilize hands free devices while operating city vehicles.

She further stated that while in attendance at a law enforcement meeting she found out that the curfew is for Miami-Dade County and that legislation was adopted in 1994. She directed the City Attorney to do some research and bring back a report on the curfew.

Vice Mayor Taylor stated that she would like to co-sponsor an ordinance to ban telecom towers.

Attorney Geller advised that he is currently working on an ordinance to ban new cell towers.

Commissioner Holmes recalled an ordinance dealing with telecom towers.

Attorney Geller said he would research this matter.

Commissioner Holmes also recalled having something on the books prohibiting dogs on the parks.

He continued by saying that it was brought to his attention by the city's landscaping vendor that the city's irrigation is not working. He directed the City Manager to look into this matter to see what could be down to get the irrigation repaired.

He further informed the City Attorney that he would get with him on some of the proposed charter amendment resolutions along with the deferred compensation, health insurance, life insurance and compensation.

In trying to get dates for workshops and meetings, Mayor Kelley suggested that the Commission try to respond as quickly as possible to get the dates confirmed or provide dates of their availability.

19. CITY CLERK'S REPORT:

Clerk Irby requested that the Commission provide her with a date for the refinancing of the 1994 revenue bond series.

After brief discussion, the Commission set the workshop for May 25, 2010 at 6:00 p.m. in the City Commission Chambers.

Mayor Kelley thanked the City Clerk and staff for their assistance in the National Day of Prayer Breakfast.

Clerk Irby reported on the Census 2010 and said that the recruiters are now out in the community.

20. MAYOR/COMMISSION REPORT:

Commissioner Johnson thanked the Opa-locka Police Department and Community Empowerment Team for attending the Miami-Dade County Teen Court training with her. The author Joseph Washington was the keynote speaker and she is trying to get Mr. Washington to come back Saturday to meet with the youth on the Average Breaker Club. She requested that the City Manager reserve and set up the 2nd Floor on Saturday, May 15, 2010.

She reported her attendance at Moon Over Magnolia and the National Head start Conference in Dallas, TX. In addition to that, she's been asked to be the keynote speaker for Miami-Dade College High School Diploma Ceremony in June.

Vice Mayor Taylor stated that she is working on the Father's Day to honor the fathers.

Commissioner Tydus thanked the administration, staff and the departments that worked so diligently but most importantly cheerfully with the development of the Butterfly Garden as well as the implementation of the dedication of program of the city's Butterfly Garden.

Commissioner Holmes stated that the performance at Moon Over Magnolia was excellent; however, the youth are in need of place to train. He said he would be meeting with Vicki Antonio to see about finding a location for those kids could have a home based training site.

He stated to the City Attorney that the Cuyahoga issue is not new in this city and it goes back to the 1980's. If the City Clerk has to go back and do some research to find the information on the books relating to that property.

Mayor Kelley reported that Moon Over Magnolia was a great experience and the City Clerk gave some history, it was a very wonderful presentation particularly about the historic but where the city is headed. Although he wished there would have been more attendance at the event, he is hoping that the program is aired on the city's Opa-TV.

He continued by saying that he'd been meeting with individuals from the Opa-locka Executive Airport relating to the monies available for infrastructure and water & sewer related projects surrounding that. The city is hoping to tap into that although only a small portion of the city is in the airport boundaries per say the impact on the roads and streets are heavy.

He further stated that he'd hope the city is on its way with the Veteran's Way improvements. He also had an opportunity to meet with Mr. Willie Logan and the Opa-locka CDC in terms of NSP dollars to have them spend some of those dollars in the city towards rehab of property of new construction.

As police Commissioner, Commissioner Holmes suggested after receiving a flyer for a yard sale that if the Opa-locka Police Department had anything for him to announce that they pass it on to him before the meeting. He announced that the yard sale would take place on May 15, 2010 from 9:00 a.m. – 2:00 p.m. at the Opa-locka Police Department.

Deputy Chief Burton of the Opa-locka Police Department came forward and apologized for the late notice. He provided an explanation as to the lateness of the flyer.

Commissioner Johnson directed the Deputy Chief to have the Weed & Seed Coordinator provide an update to the Commission at the next meeting.

She further stated that she would be meeting with some planners for the Caribbean carnival to be held at the Opa-locka Airport. In addition to that, she will be meeting with the group "Stand Up", Georgia Ayers, pastors and police and would provide a follow up at the next meeting.

21. OFFICIAL BOARD APPOINTMENTS:

22. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Holmes, seconded by Commissioner Johnson to adjourn the meeting at 10:10 p.m.

MAYOR

ATTEST:

CITY CLERK